

## Arun Joshi vs Smt Kamini Joshi on 29 May, 2019

**Bench: Mohammad Rafiq, Narendra Singh Dhaddha**

HIGH COURT OF JUDICATURE FOR RAJASTHAN  
BENCH AT JAIPUR

D.B. Civil Miscellaneous Appeal No. 5243/2016

Arun Joshi S/o Shri Arvind Joshi, aged about 30 years, by caste  
Brahmin, R/o Mohan Colony, Gali No.5, Behind Central Bank,  
Banswara, Distt. Banswara (Raj.)

----Appellant-Non Applicant

Versus

Smt Kamini Joshi W/o Sh. Arun Joshi, D/o Sh. Ramesh Chand  
Sharma, by caste Brahmin, R/o 40, Agarsen Colony, Jhalawar,  
Distt. Jhalawar (Raj.)

----Respondent

For Appellant(s) : Shri Sanjay Sharma  
For Respondent(s) : Shri Sanjay Mehrishi

HON'BLE MR. JUSTICE MOHAMMAD RAFIQ

HON'BLE MR. JUSTICE NARENDRA SINGH DHADDHA Order 29/05/2019 This appeal is directed against the judgement of Family Court, Jhalawar dated 2.8.2016. The Family Court by the aforesaid order has while allowing the petition filed by the respondent-wife granted the decree of divorce and dissolved the marriage with direction to the appellant to pay a sum of Rs.5 lakhs as permanent alimony under Section 25 of the Hindu Marriage Act.

Learned counsel for the parties submitted that the matter has been compromised between the parties. The appellant has agreed to pay to the respondent a sum of Rs.5 lakh by demand draft in compliance of impugned order and the respondent has agreed for withdrawing or getting the proceedings pending in case no.296/2016 for offence u/s.498A and 406 IPC in the Court of (2 of 2) [CMA-5243/2016] Judicial Magistrate, Jhalawar. An affidavit to this effect has been filed by the respondent before this Court.

Learned counsel for the appellant submits that the appellant has prepared the demand draft and shall deposit the same with the Court of Judicial Magistrate, Jhalawar, before which Court the parties may jointly file a compromise deed. However, he submits that that Court would be competent to compound the offence u/s.406 IPC and not the offence u/s.498A IPC.

The petition is disposed of in the light of aforesaid compromise. The parties shall file the compromise deed along with joint application before the Judicial Magistrate, Jhalawar. The appellant shall deposit the aforesaid demand draft with the Court of Judicial Magistrate, Jhalawar

who shall handover the same to the respondent against the clear receipt. As far as offence u/s.406 IPC is concerned, the said Court shall pass appropriate order and with regard to offence u/s.498A IPC, the Court may on the request of respondent-wife recommend the matter to the Government for withdrawal of the prosecution by placing the matter before the next Lok Adalat, which is scheduled to take place on 13 th July, 2019 so that the matter may be settled with the Lok Adalat. (NARENDRA SINGH DHADDHA),J (MOHAMMAD RAFIQ),J RAVI SHARMA /14 Powered by TCPDF (www.tcpdf.org)